



Skinner Legacies

Client Rights Policy

Applies to: All Skinner Legacies employees, contractors, interns, volunteers, and persons receiving assessment, mental health, substance use, case management, day treatment, respite, crisis, or other certified services.

Purpose and policy

Skinner Legacies protects the legal and personal rights of every person served. Staff explain these rights in a way each person can understand, support informed choices, and address concerns without retaliation. This policy operates with the separate Client Grievance and Resolution Policy, privacy practices, informed consent, and applicable payer notices. A parent, guardian, or authorized representative exercises rights only to the extent permitted by law; staff also involve the client to the extent appropriate.

Rights of every client

1. To be treated with consideration and respect for personal dignity, autonomy, and privacy.
2. To be protected from physical, sexual, or emotional abuse, neglect, inhumane treatment, and sexual exploitation.
3. To receive services or supports in the least restrictive feasible environment.
4. To participate in any appropriate, available service consistent with the individualized treatment plan even if another certified service is refused, unless the other service is necessary for clear treatment reasons and requires the client's participation.
5. To give informed consent to, or refuse, any certifiable service or support.
6. To participate in developing, reviewing, and revising the individualized treatment plan and receive a copy.
7. To be free from unnecessary or excessive medication and from restraint or seclusion unless there is immediate risk of physical harm to self or others.
8. To be informed of and refuse unusual or hazardous treatment procedures.
9. To be advised of and refuse observation by others or by one-way mirrors, audio or video recordings, television, movies, photographs, or other audio and visual technology. This does not prohibit lawful closed-circuit monitoring of common areas; bathrooms and sleeping areas are excluded.



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10. To confidentiality of communications and identifying information, subject to disclosures permitted or required by state and federal law.
11. To access the client record unless information is restricted for clear treatment reasons. Any such restriction must be reflected in the treatment plan with its reason, a goal to remove it, and treatment offered to remove it; applicable access and review rights under HIPAA and Ohio law also apply.
12. To be told in advance why participation in a certified service is ending and be provided a referral unless the service is unavailable or not necessary.
13. To be told why a certified service or support is denied.
14. To receive services without discrimination based on race, ethnicity, age, color, religion, gender, national origin, sexual orientation, physical or mental disability, developmental disability, genetic information, HIV status, or any other status protected by law.
15. To know the cost of certified services or supports, including any lawful responsibility for payment.
16. To be verbally informed of all client rights and receive a written copy upon request.
17. To exercise rights without reprisal, subject to health and safety considerations.
18. To file a grievance.
19. To receive oral and written grievance instructions and assistance filing a grievance if requested.
20. To be informed of one's own condition.
21. To consult an independent treatment specialist or legal counsel at one's own expense.

How rights are provided

Before or when assessment or certified treatment begins, staff verbally explain this policy in a manner appropriate to the person's age, language, disability, and understanding, offer a written copy, explain the grievance process, and document the explanation in the individual client record. Staff arrange interpretation, communication aids, or reasonable accommodations as needed. In an emergency or crisis, staff may first explain immediately relevant rights, including consent and refusal, and provide the complete explanation at the first subsequent meeting. Recipients of referral, information, or consultation services may request a copy and explanation.



The rights policy and grievance procedure are posted conspicuously at each Skinner Legacies controlled service location and on its website with the client advocate's name, phone number, and email. Where posting at a location outside Skinner Legacies control is infeasible, copies are available there on request. Staff may never require waiver of rights as a condition of services.

Privacy and treatment decisions

Staff obtain informed consent and explain the nature, likely benefits, material risks, alternatives, and consequences of refusal as applicable. Refusal is documented and care options are discussed. Disclosure of protected information follows HIPAA, Ohio confidentiality rules, and 42 CFR Part 2 when applicable. Clients receive the Notice of Privacy Practices and may seek access, amendment, and accounting as provided by law. Safety reports and mandatory disclosures are made when required by law.

Grievances and protection from retaliation

A client or someone acting on the client's behalf may raise concerns verbally or in writing to any trained onsite recipient or the designated client advocate. The advocate helps put a verbal grievance in writing and follows the separate grievance procedure. Skinner Legacies provides written acknowledgment within three business days and a decision within twenty business days, with written notice and documentation of any extension for extenuating circumstances. Clients may also contact the applicable ADAMH board, Ohio Department of Behavioral Health, Disability Rights Ohio, or the U.S. Department of Health and Human Services Office for Civil Rights. Staff must never retaliate or interfere with access to outside remedies.

Medicaid coverage decisions and due process

A complaint about Skinner Legacies is distinct from an appeal of a Medicaid coverage or authorization decision. When a Medicaid managed care plan or OhioRISE denies, limits, reduces, suspends, or ends a covered service, staff promptly give the client the plan's notice and help the client contact the plan to request an appeal or expedited appeal, and then a state hearing where permitted. The current notice controls the filing instructions and deadlines. Under OAC 5160-26-08.4, a managed care appeal generally may be filed within 60 calendar days of the notice; a state hearing generally follows completion of the plan appeal and may be requested within 90 calendar days of an adverse appeal resolution. Prompt filing may preserve previously authorized benefits when the rule's conditions are met. For fee-for-service or other programs, staff follow the applicable



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agency notice and state hearing procedure. Skinner Legacies does not substitute its grievance process for payer appeal or state hearing rights.

Staff responsibilities and oversight

The Clinical Director oversees implementation, reviews concerns and corrective actions, and ensures personnel and contractors understand this policy. Each employee, contractor, volunteer, and student intern receives the rights and grievance policies and acknowledges agreement to follow them in the personnel file. Supervisors address violations, document remedial action, and make required abuse, neglect, or other incident reports. Leadership reviews rights concerns and grievances for quality improvement. Grievance files are retained at least two years after resolution, or longer if another retention rule or preservation hold applies.

Implementation information

Client advocate: Christopher Skinner, PhD

Title: Co- Owner & Chief Compliance Officer

Location: 398 W. Bagley Rd. Suite 10. Berea, OH 44017

Hours: M-F 9AM-5PM

Phone: 440-467-1555

Email: info@skinnerlegacies.com

Alternative Grievance Advocate: Amber Skinner

Title: Co- Owner & Chief Executive Officer

Authority and related documents

Ohio Administrative Code 5122-26-18 (effective August 1, 2026); OAC 5122-26-06; OAC 5160-26-08.4; applicable Ohio Medicaid and OhioRISE requirements; HIPAA, 45 CFR Parts 160 and 164; 42 CFR Part 2 when applicable; applicable CARF Behavioral Health standards for rights of persons served, accessibility, confidentiality, informed consent, complaints, and advocacy. Related documents: Client Grievance and Resolution Policy and Form; Notice of Privacy Practices; informed consent; treatment planning; incident reporting.